

TOWN OF GEORGETOWN

Municipal Contract

Between the Town

and the

AMERICAN FEDERATION OF STATE, COUNTY
AND MUNICIPAL EMPLOYEES

AFL-CIO COUNCIL 93
LOCAL 939

POLICE COMMAND STAFF

July 1, 2020 — June 30, 2023

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This agreement entered into by the Town of Georgetown, hereinafter referred to as the Employer, and American Federation of State, County and Municipal Employees, AFL-CIO, Council 93, Local 939, hereinafter referred to as the Union, has as its purpose the establishment of rates of pay, hours of work, and other conditions of employment.

ARTICLE 1 RECOGNITION

The employer recognizes the Union as the sole and exclusive bargaining agent for the purpose of establishing wages, hours and other conditions of employment, for all employees of the Town of Georgetown, as certified by MCR-0000, specifically:

Including employees in the position of Lieutenant, Sergeant, and Detective Sergeant. Excluding Patrolmen, the Chief of Police, Dispatchers, all Confidential and Managerial and all other employees of the town.

ARTICLE 2 UNION DUES, COSTS and FEES

The Union may secure authorization for the deduction of Union Dues, agency fees and service fees. Upon receipt of the authorization, the Town Treasurer will initiate the deduction of such dues and fees and transmit the same in total upon collection accompanied by a listing detailing the names and individual amounts deducted to the Union. The Union agrees to indemnify the Town for all fees, damages and costs in complying with this article.

ARTICLE 3 GRIEVANCE PROCEDURE

Section 1. A Grievance is defined as a dispute, which may arise over the application, meaning or interpretation of this agreement.

Section 2. A Grievance shall be processed as follows:

Step 1. The Union steward shall submit the grievance in to the department head within seven (7) calendar days after the occurrence of the incident upon which the grievance is based or seven (7) calendar days after the employee knew or should have known of the occurrence of the incident stating the specific article and section of the agreement that is being disputed and giving details of the incident. The Chief of Police shall answer the grievance within fourteen (14) calendar days, but may extend the time of his answer of the grievance upon written notice thereof to the employee stating his reasons for the extension. The length of time the department head may extend his answer to the grievance shall be no more than seven (7) additional calendar days.

Step 2. If the matter is still not resolved the grievance shall be filed in writing with the Board of Selectmen within seven (7) calendar days after receipt by the Union of the Police Chiefs reply or failure to reply. Within

fourteen (14) calendar days of such notice, the selectmen shall provide a written disposition of the grievance. The meeting with the Board of Selectmen shall not be a full hearing but an informal meeting for the purpose of resolving the grievance and either side may at their option elect confidentially of such meetings provided they have given written notice of the same to the other party within a reasonable period of time.

Step 3. If the matter is still not resolved either party may within twenty-one (21) calendar days after the date of the ~~Selectmen's~~ written disposition to the employee submit the matter either to the Georgetown Personnel Director or the American Arbitration Association. In either case, the decision of the Personnel Director or the American Arbitration Association shall be final and binding.

Section 3. Neither the Personnel Director nor the Arbitrator shall have jurisdiction or authority directly or indirectly to add, alter or modify in any way the terms of this agreement.

Section 4. Costs of arbitration shall be borne equally by both parties.

Section 5. A grievance shall be deemed waived unless:

- A. Submitted to the Chief of Police in writing, stating the specific article and section of the agreement being disputed and giving details of the incident, within seven (7) calendar days after the occurrence of the incident upon which the grievance is based; and
- B. Submitted to the Board of Selectmen in writing within seven (7) calendar days after the Police Chiefs answer is due; and
- C. Submitted to the Personnel Director or American Arbitration Association within twenty-one (21) calendar days after the Board of Selectmen's answer is due as provided under step 2 under section 2 above.

Section 6. If a grievance involves disciplinary action then at the election of the employee he may skip Step 1 and go directly to Step 2.

Section 7. The time limits expressed in this contract may be extended by both parties by agreement in writing prior to the time to be extended.

ARTICLE 4 MANAGEMENT RIGHTS

Section 1. Except as modified by this agreement, the rights of the Town shall be respected at all times, and the provisions of this agreement shall be observed for the orderly settlement of all questions.

Section 2. The Town retains the right and responsibility to:

- A. Hire, discharge, transfer, suspend and discipline employees for good cause;

- B. Determine the number of persons required to be employed;
- C. Determine the qualification of employees;
- D. Make any and all reasonable rules and regulations not in conflict with this agreement governing the conduct of the departments;
- E. Determine the work assignments of its employees;
- F. Determine the type of equipment, facilities and work processes to be used;
- G. Determine to make technological alterations by revising either processes or equipment, or both;
- H. Select and locate plants or other facilities;
- I. Establish, expand, transfer, and/or consolidate work processes and facilities;
- J. Transfer or subcontract work.
- K. To require physical or psychological examinations of employees when deemed necessary

Section 3. It is understood that all department heads can, and will be performing any and all duties performed by employees of the department.

Section 4. Employer shall not subcontract in any manner, which will diversely effect the employee's regular work week.

ARTICLE 5 DISCRIMINATION AND COERCION

There shall be no discrimination by the employer against any employee because of his activity or membership in the union.

ARTICLE 6 HOURS OF WORK

Section 1. The regular workweek for permanent, Sergeants and Detective Sergeant shall be scheduled on a four (4) days on, two (2) days off schedule. A shift is defined as eight (8) straight hours.

Section 2. The rank of Lieutenant will work a 5/2 shift with the hours of work Monday thru Friday 7:00AM to 3:00PM with weekends and holidays off and will receive five (5) additional compensatory days as a result of an administrative shift assignment.

Section 3. All Shift Changes will be assigned at least thirty (30) days prior to the anticipated shift change, with the exception of a change in manpower. All shifts are subject to the approval of the Chief of Police. Any changes made by the Chief of Police shall not be arbitrary or capricious.

Section 4. It is understood that the possibility of being called out for an emergency is part of the job, inasmuch as the safety of the public is involved; and as such the employee shall be required to report to work when directed.

Section 5. In the event that a Sergeant or Detective Sergeant is assigned to appear in Court outside of regular duty hours, he shall be paid four (4) hours at time and one half (1 1/2) for any

whole or part of any day or at the option of the Sergeant and Detective Sergeant take compensatory time off.

Section 6. Overtime shall be paid at the rate of one and one half (1 1/2) times their regular rate of pay for time which is in excess of their regular work week.

Section 7. In the event that a Sergeant, Lieutenant, or Detective Sergeant is called in for work outside regular hours, he shall be paid four (4) hours at time and one half (1 1/2) his regular rate of pay.

Section 8. If a vacancy exists of five (5) or less scheduled work days, because of sick leave, all Command Staff members shall be offered the vacancy on a rotating basis. If a vacancy of more than five (5) scheduled work days exists, filling of the vacancy shall be at the discretion of the Chief of Police. Each and every sick leave event (call-in) shall be considered separate from any and all previous sick leave events (call-ins) and shall be treated as a new event unless considered a pre-existing condition with documentation specific to each event.

Section 9. Personal Leave. All employees within the bargaining unit shall be allowed three (3) personal days per fiscal year, not to be charged to any other leaves.

Section 10. Superior Officers shall receive four (4) compensatory days per year for on call status.

Section 11. All offered overtime shifts will be distributed to members on a rotating basis. The rotation shall be based on the number of shifts offered starting with the most senior person. IE: The most senior officer with the least offerings shall be offered an OT shift first and so-on until the full-time list is exhausted. Training for specific officers shall not be included in the rotation.

ARTICLE 7 TERMS OF EMPLOYMENT

New employees shall be on probation for six (6) months. The Town retains the right to dismiss a probationary employee without recourse to the grievance or arbitration procedure, and he/she shall have no seniority status nor bidding nor bumping rights.

ARTICLE 8 SUSPENSION AND DISCHARGE

No employee shall be suspended or discharged (other than temporary) without sufficient cause and the employer shall notify the union in writing forty-eight (48) hours after any suspension or discharge of an employee.

ARTICLE 9 SENIORITY

The principle of seniority shall govern and control in all cases of decrease of working force as well as priority in extra work and selection of vacation. Seniority shall begin on the date of hire to a permanent

vacancy. In the event that more than one Officer is appointed to full-time status on the same date/time, seniority will be based on reserve time appointments.

ARTICLE 10 HOLIDAYS

Section 1. The following days shall be recognized as paid, legal holidays:

New Year's Day	Labor Day
Martin Luther King Jr. Day	Columbus Day
President's Day	Veteran's Day
Patriot's Day	Thanksgiving Day
Memorial Day	Day after Thanksgiving
Independence Day	Christmas Day

Section 2. If the holiday occurs within an employee's vacation period, he shall be paid at his/her basic hourly rate in addition to his holiday pay or be entitled to a compensatory day off.

Section 3. Employees who are scheduled to work on holidays shall be paid at one and one half (1 1/2) times their straight time in addition to their holiday pay or be entitled to compensatory time off at the discretion of the Employer. Employees working an overtime shift, called in to work, or mandated to work (overtime shift) will be paid at two (2) times their straight time rate in addition to their holiday pay or be entitled to compensatory time off at the discretion of the Chief of Police.

Section 4. Except as provided for in Article 10, Section 2 and 3 there shall be no duplication of Holiday pay if the day is otherwise paid for.

Section 5. The Chief of Police shall have the option of approving or disapproving the compensatory time off to be taken by the Lieutenant, Sergeants and Detective Sergeant.

Section 6. In the event an employee requests time off by use of compensatory time owed, written notice must be submitted at least ten (10) calendar days prior to said time off.

ARTICLE 11 VACATIONS

Section 1. All employees who have worked for the employer for one (1) calendar year from the date of employment shall receive two (2) weeks' vacation (10 days paid).

Section 2. All employees who have worked for the employer for five (5) continuous calendar years from the date of employment shall receive three (3) weeks' vacation.

One vacation day will be added for each additional year between six (6) and ten (10) when the employee becomes eligible for four (4) weeks' vacation. IE: An employee with seven (7) years' service will receive three (3) weeks + two (2) additional days.

- Section 3. All employees who have worked for the employer for ten (10) continuous calendar years from the date of employment shall receive four (4) weeks' vacation.
- Section 4. All employees shall be allowed one (1) additional vacation day for each year worked beyond their tenth 10th year up to a maximum of ten (10) additional days.
- Section 5. Request for vacation time shall be submitted at least ten (10) calendar days in advance except for emergencies for approval purposes.
- Section 6. All employees under this Agreement shall be afforded the opportunity of carrying over one (1) week of vacation time from fiscal year to fiscal year at the discretion of the Chief of Police. Any employee wishing to carry over vacation time must provide notice to the Chief of Police no less than thirty (30) days before the end of the then current fiscal year.
- Section 7. Vacation periods shall run with the Town's fiscal year, July 1st to June 30th.

ARTICLE 12
SICK LEAVE

- Section 1. Employees shall accumulate sick leave at one day and one half (1 1/4) days per month up to a maximum of two hundred (200) days.
- For new (7/1/2011 or after) hires, the maximum sick leave accrual shall be one-hundred and fifty (150) days.
- Section 2. Upon termination of employment or death (to estate), employees shall be allowed to buy back fifty (50%) percent, up to 75 days, of their accumulated sick leave at the rate of ninety (\$90.00) dollars per day. However, in the event that an employee is killed in the line of duty working for the Town of Georgetown, the estate of the employee shall receive all accumulated sick time (up to 200 days) of the deceased employee at the rate of one hundred percent (100%) of the employee's pay.
- Section 3. At the end of the fiscal year, unit members who have not used any sick days in the fiscal year shall be granted three days of compensatory time. Any unit member who has used one sick day in the fiscal year shall be granted two days of compensatory time. A unit member who has used two sick days in the fiscal year shall be granted one day of compensatory time. No compensatory time shall be granted for use of three or more sick days.
- Section 4. Command Staff may give the sick bank up to ten (10) sick days per year. Sick days received from the sick bank shall be exempt from any and all compensation upon termination of employment. Sick days donated to the sick bank shall not be considered as used days under Article 12, Section 3.

ARTICLE 13
BEREAVEMENT LEAVE

- Section 1. In the event of death in the immediate family of an employee, the employee will be granted leave with pay in the amount of three (3) working days, and such leave will not be charged to sick leave or vacation leave. Bereavement leave shall cover the time absent during the patrolman's normal work week excluding holidays, vacation, or other time normally worked.
- Section 2. Immediate family shall mean spouse, children, brother, sister, mother, father, mother-in-law, father-in-law, foster children, stepchildren, grandchildren, significant other, grandparent, brother-in-law and sister-in-law. If extenuating circumstances require additional days for bereavement, up to three (3) additional days may be granted by the department head. These additional days may be taken from any and all authorized paid leave (except sick time), or as unpaid leave.
- Section 3. There shall be no duplication of bereavement leave if the day is otherwise paid for.

ARTICLE 14
MILITARY LEAVE

An official leave of absence of six (6) months or more without pay will be granted for active duty in any branch of the Armed Forces of the United States in the event of a national emergency or war. When the person is released from such service, he/she will be eligible for re-employment provided he notifies the Town in writing twenty-one (21) days prior to his/her return to employment.

ARTICLE 15
JURY PAY

The employer agrees to make up the difference in any employee's wages between a normal week's wages and compensation received for jury duty. The employee agrees to return to work if excused from jury duty by 1:00AM on the same day.

ARTICLE 16
UNIFORMS and EQUIPMENT

There shall be a uniform and equipment allowance for the Police Department employees, which shall be paid to the provider of uniforms in the amount of \$1,200.00 per fiscal year and for which up to twenty-five (25) percent can be used for cleaning per year. A terminated employee must reimburse the town for current year's allowance on a prorated basis. Up to \$300.00 per year may be used to purchase appropriate attire for the purpose of court appearances. Uniform allowance must be used within the fiscal year or be forfeited.

A portion of the uniform allowance may also be used for the purchase of approved equipment. As with the purchase of uniforms, payment for any such equipment purchases shall be made to the equipment provider.

ARTICLE 17
STRIKE PROVISION

The Union agrees that during the term of this contract or while negotiations are being held for a subsequent contract neither the Union, its agents, nor its members will authorize aid, or assist, instigate, or engage in any work stoppage, slowdown, refusal to work, or strike against the Town.

ARTICLE 18
WAGES

Section 1. General wage increase

Calculate hourly wages from annual salaries and replace with hourly salaries.

Effective July 1, 2020 the Wage scale shall be adjusted by 2.0% COLA

Effective July 1, 2021 the Wage scale shall be adjusted by 2.0% COLA

Effective July 1, 2022 the Wage scale shall be adjusted by 2.0% COLA

Effective July 1, 2019, an additional step will be added for each command staff position at a 1.5% base wage increase, which shall be reflected in Appendix A . Employees who have 3 years of service within the command staff unit shall be eligible for the additional step, effective July 1, 2019. Employees with less than 3 years shall be eligible on their 3-year anniversary date within the command staff.

Section 2. The Quinn Bill shall be incorporated into this contract. Employees with an Associate Degree in Criminal Justice shall receive a differential in their weekly salary. Employees with a Bachelor's Degree in Criminal Justice shall receive 20% differential in their weekly salary. Employees with a Master's Degree in Criminal Justice shall receive 25% differential in their weekly salary.

Non-Quinn Bill Eligible Police Officers will be eligible for the following weekly differential calculated based upon an officer's base wage. Employees with a Master's Degree shall receive a 20% differential calculated based upon an officer's base wage. Employees with a Bachelor's Degree shall receive a 15% differential calculated based upon an officer's base wage. This benefit is non-cumulative and an employee can only receive one educational differential. A Bachelor's Degree will be required for new hires unless waived by the Employer.

Section 3. Detail Work

Effective July 1, 2020 the rate for all detail work by employees under this Collective Bargaining Agreement shall be \$52.00 per hour.

Effective July 1, 2021 the rate for all detail work by employees under this Collective Bargaining Agreement shall be \$53.00 per hour.

Effective July 1, 2022 the rate for all detail work by employees under this Collective Bargaining Agreement shall be \$54.00 per hour.

- A. All Detail Assignments are a minimum of four (4) hours per detail. Any work beyond four (4) hours shall be a minimum of eight (8) hours pay. All work over eight (8) hours, per single detail, shall be at time and one half (1/2). All private detail work on Sunday and Holidays shall be paid at time and one half (1/2) with the minimums specified above. For private details, any hours over eight (8) hours on a Sunday or Holiday will result in time and one half of the holiday detail rate.
- B. If there are three (3) or more officers on the same detail, the unit member who is assuming a supervisory role will be paid an additional \$1.00 per hour for that detail, with the approval of the Chief of Police.
- C. Following a sick shift, employees must work a full shift before being eligible for private details or have a minimum of 23 hours pass between the end of the shift for which the officer called in sick and the start of the private detail. Employees who have worked more than sixteen (16) consecutive hours are not eligible for private detail work. (i.e. working a triple shift consecutively).

Section 4. Detective Sergeant. Effective July 1, 2020, the position of Detective Sergeant shall be added to the pay scale in Appendix A, with a base rate equal to 3% more than the base rate for the position of Sergeant.

Section 5. Longevity
Beginning on July 1, 2014, regular full-time employees who have been employed by the Police Department for 15 or more years (calculated by continuous full-time employment as members of either this bargaining unit or the patrol officers bargaining unit) shall be eligible for a \$500 annual payment, which payment shall be made on the annual anniversary date of the start of that employee's full time position with the Police Department.

Section 6. Shift Differential
Effective July 1, 2020 all officers working the 2nd shift shall be granted a 3% shift differential. All officers working the 3rd shift shall be granted a 6% shift differential.

Section 7. In the event that an employee is called in for Breathalyzer duty, they shall be paid a minimum of four (4) hours at a rate of time and one-half (1 1/2).

ARTICLE 19 MISCELLANEOUS PROVISIONS

Section 1. All members of the bargaining unit shall be appointed each year for a period of three (3) years by the Board of Selectmen.

ARTICLE 20 SPECIAL LEAVE

Each employee shall be granted special leave (swaps) with pay for a day he/she is able to secure another employee to work in his/her place. This leave will be allowed provided;

Section 1. Such substitution does not impose any additional cost to the Town with regard to payment or salaries and/or wages.

Section 2. That the Chief of Police or his designee, shall approve such substitution in advance of it becoming effective.

ARTICLE 21
DURATION

Section 1. This agreement shall take effect July 1, 2020 and shall expire June 30, 2023

Section 2. On or about January 2, 2023, with proper notification, the parties shall meet to negotiate a successor agreement, while said negotiations are ongoing, this contract shall remain in full force and effect.

ARTICLE 22
MISCELLANEOUS

Section 1. Name of Bargaining Unit.

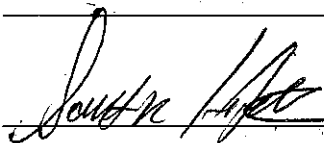
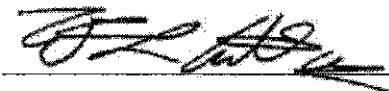
It is agreed that the name of the unit is be changed from "Senior Police Officers" to "Police, Command Staff."

In witness whereof each of the parties hereunto has caused these present to be executed

this ____ day of _____, 2020

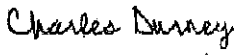
American Federation of State
State County and Municipal Employees
Council 93, AFL, CIO, Local 939

TOWN OF GEORGETOWN
By it Board of Selectmen

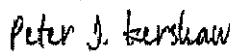



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Douglas W. Dawes, Clerk
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Charles Durney, Member

Gary C. Fowler, Member

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Peter J. Kershaw, Member

Date: _____

APPENDIX A - WAGE SCHEDULE

POLICE COMMAND STAFF

	FY20	FY21	FY22	FY23
Sergeant (I)	\$38.56	\$39.33	\$40.12	\$40.92
Sergeant (II)	\$39.13	\$39.91	\$40.71	\$41.53
Lieutenant (I)	\$40.96	\$41.78	\$42.61	\$43.47
Lieutenant (II)	\$41.58	\$42.41	\$43.26	\$44.13

MEMORANDUM OF AGREEMENT
BETWEEN
THE TOWN OF GEORGETOWN, MA
AND
AMERICAN FEDERATION OF STATE, COUNTY AND MUNICIPAL EMPLOYEES
COUNCIL 93, AFL-CIO
LOCAL 939
GEORGETOWN POLICE COMMAND STAFF

The Town of Georgetown, Massachusetts (the "Town") and the American Federation of State, County and Municipal Employees Council 93, AFL-CIA, Local 939 representing Georgetown Police Command Staff (the "Union"), having engaged in negotiations for a successor collective bargaining agreement and having now reached an agreement as a result of those negotiations, hereby agree on a successor collective bargaining agreement which shall be effective from July 1, 2020 through June 30, 2023, and shall carry forward all of the written provisions of the parties most recently expired agreement except as modified by the following:

1. Article 2 – Payroll Deduction of Agency Fee

Replace Entire Section:

~~"Pursuant to General Laws, Chapter 150E, Section 12, as amended by Chapter 903 of the Acts of 1977, it shall be a condition of employment that on or after the thirtieth (30) day of employment in the bargaining unit, or the effective date of the agreement, whichever is later, each and every member of the bargaining unit shall pay in or to the union an agency service fee, or union dues. The Union agrees to indemnify the Town for all fees, damages and costs in complying with this article. No request to dismiss or suspend an employee for non-compliance shall be honored so long as there is a dispute between the employee and the Union not resolved by the State Labor Relations Commission or a court of competent jurisdiction.~~

Union Dues, Costs and Fees

The Union may secure authorization for the deduction of Union Dues, agency fees and service fees. Upon receipt of the authorization, the Town Treasurer will initiate the deduction of such dues and fees and transmit the same in total upon collection accompanied by a listing detailing the names and individual amounts deducted to the Union. The Union agrees to indemnify the Town for all fees, damages and costs in complying with this article."

2. Article 6 – Hours of Work

Modify Section 3 to read as follows:

“All Shift Changes will be assigned at least thirty (30) days prior to the anticipated shift change, with the exception of a change in manpower. All shifts are subject to the approval of the Chief of Police. Any changes made by the Chief of Police shall not be arbitrary and capricious.”

Modify Section 10 to read as follows:

“Superior Officers shall receive ~~two~~ four (24) compensatory days per year for on call status.

3. Article 10 – Holidays

Modify Section 3 to read as follows:

“~~Employees who work on holidays shall be paid at one and one half (1½) times their straight time in addition to their holiday pay or be entitled to compensatory time off at the discretion of the Sergeant or Detective Sergeant. Employees who are scheduled to work on holidays shall be paid at one and one-half (1½) times their straight time in addition to their holiday pay or be entitled to compensatory time off at the discretion of the Employee. Employees working an overtime shift, called in to work, or mandated to work (overtime shift) will be paid at the two (2) times their straight time rate in addition to their holiday pay or be entitled to compensatory time off at the discretion of the Chief of Police.~~

4. Article 18 – Wages

Modify Section 1 to read as follows:

Effective July 1, 2020 the Wage scale shall be adjusted by 2.0% COLA
Effective July 1, 2021 the Wage scale shall be adjusted by 2.0% COLA
Effective July 1, 2022 the Wage scale shall be adjusted by 2.0% COLA

Modify first paragraph of Section 3 to read as follows:

Effective October 1, ~~2017~~ 2020, the rate for all detail work by employees under this Collective Bargaining Agreement shall be ~~\$54~~ \$52.00 per hour. ~~However, for the Elm Street Project contracted with Newport Construction, the detail rate shall remain at \$42.00 per hour until its expected completion in or around November 2017.~~ Effective July 1, 2021, the rate for all detail work by employees

under this Collective Bargaining Agreement shall be \$53.00 per hour. Effective July 1, 2022 the rate for all detail work by employees under this Collective Bargaining Agreement shall be \$54.00 per hour.

Modify Section 4 to read as follows:

"Effective July 1, 2020, the position of Detective Sergeant shall be added to the pay scale in Appendix A, with a base rate equal to ~~1.53.0%~~ more than the base rate for the position of Sergeant."

Modify Section 6 to read as follows:

"Effective July 1, 2020, all officers working the 2nd shift shall be granted a ~~13%~~ shift differential. All officers working the 3rd shift shall be granted a ~~36%~~ shift differential."

5. Article 21 – Duration

Modify to read as follows:

"Section 1. This agreement shall take effect July 1, ~~2017-2020~~ and shall expire June 30, ~~2020~~2023.

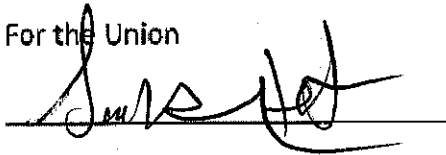
Section 2. On or about January 2, ~~2020~~2023, with proper notification, the parties shall meet to negotiate a successor agreement, while said negotiations are ongoing, this contract shall remain in full force and effect.

6. Appendix A – Wages

Modify scale to reflect COLAs outlined in Article 18, Section 1.

Agreed by the parties this 19th day of October 2020.

For the Union



For the Town

